

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUWT065346: ALESHA ALLEN vs COUNTY OF VENTURA, et al.
09/08/2026 in Department 21
Demurrer

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant County of Ventura’s Demurrer to Ninth Cause of Action for Wrongful Termination in Violation of FEHA

Tentative Ruling: Defendant’s Demurrer to the Ninth Cause of Action for Wrongful Termination is OVERRULED.

Defendant shall file and serve its answer within 10 days.

Plaintiff is to give notice of this ruling within two (2) court days.

Discussion:

Defendant contends that the ninth cause of action for wrongful termination, if truly a statutory claim, is duplicative of the first (race discrimination) and second (disability discrimination) causes of action. While it is true that plaintiff generally avers in the first and second causes of action that she lost her job because she was in FEHA-based protected classes, and that she makes a duplicate contention in her ninth cause of action, the overlap is not a problem. Duplication or redundancy, while certainly unnecessary and possibly the subject of a motion to strike, is not a legal basis for a demurrer. (See *R.L. v. Merced City School District* (2025) 114 Cal.App.5th 89, 119.) On this ground the demurrer must be overruled.

As to the more-substantive issue, defendant contends that the ninth cause of action is really just a common law “*Tameny*” claim, and such claims cannot be pled against public entities.

While an at-will employee may ordinarily be terminated for no reason at all, or even for one that is considered to be arbitrary or irrational, an employer is not permitted to terminate an employee for a reason which contravenes a well-established fundamental public policy. (*Tameny v.*

Atlantic Richfield Co. (1980) 27 Cal.3d 167, 172.) This is commonly referred to as a *Tameny* claim. To establish a *Tameny* claim, plaintiff must plead facts to ultimately show by a preponderance of the evidence each of the following essential elements: (1) the existence of an employer-employee relationship; (2) some adverse employment action taken against the employee; (3) adverse action that is substantially motivated by purpose violative of public policy; and (4) actual damages proximately caused by the adverse action. While *Tameny* claims depend upon a statute or enactment, they are not claims pursuant thereto. A *Tameny* claim can be based on a FEHA violation. (See *Silo v. CHW Medical Foundation* (2002) 27 Cal.4th 1097, 1108–1109; *Davis v. Farmers Ins. Exchange* (2016) 245 Cal.App.4th 1302, 1322–1323; *Mendoza v. Western Medical Center Santa Ana* (2014) 222 Cal.App.4th 1334, 1341.)

As it relates to the case at bar, public entities are different from private employers. Public entities can only be held liable for wrongdoing if a statute specifically provides for such. (Gov. Code §815; *Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803–804.) While public agencies can be liable directly under FEHA, there is no equivalent right to sue a public entity for a *Tameny* violation – even though the two causes of action (direct FEHA and *Tameny*) would appear in most respects to the untrained eye to be identical to one another. (See *Miklosy v. Regents of the University of California* (2008) 44 Cal. 4th 876, 898 (plaintiff could sue public employer under FEHA, but not under *Tameny* via a FEHA violation].)

There is a difference of opinion between counsel as to whether the ninth cause of action is under FEHA, or under *Tameny* via FEHA. The averments provide that “as a direct result of Plaintiff’s protected status and/or protected activities, Defendant wrongfully terminated Plaintiff’s employment, in violation of [FEHA].” (Complaint Para 176.) Plaintiff alleged that she is “entitled to compensatory damages, injunctive relief, and other relief the Court deems just and proper, as well as attorneys’ fees and costs of suit pursuant to [FEHA].” (Complaint Para 178.) Finally, plaintiff seeks, in addition to compensatory damages, “interest, penalties, costs, and attorney fees related to this cause of action, pursuant to [FEHA].” (Complaint Para 183.) Even the label plaintiff gave to her cause of action – “Wrongful Termination in Violation of [FEHA]” – reasonably informs the reader that the ninth cause of action is a statutory claim under FEHA and not, as defendant argues, a disguised *Tameny* claim. Based on the face of the complaint, this cause of action is not a *Tameny* claim. As such, the demurrer is OVERRULED.